

22STCV41061 22STCV41061

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-30

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Case Number: 22STCV41061 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV41061

DANNY

LEOS (DECEASED) BY AND THROUGH HIS SUCCESSOR IN INTEREST YVONNE LEOS, AN
INDIVIDUAL vs BERTHA MOLINARI, et al.

June

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT/CROSS-COMPLAINANT/CROSS-DEFENDANT BERTHA MOLINARI'S MOTION FOR A PROTECTIVE
ORDER FOR IMMUNITY RE: FIFTH AMENDMENT RIGHT AGAINST SELF INCRIMINATION OF DEFENDANT
BERTHA MOLINARI AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$1,155.

RULING:

The Court grants the Motion
for a Protective Order, as specified herein.

This Order immunizes Defendant/Cross-Complainant/Cross-Defendant,
BERTHA MOLINARI, from prosecution for any offense implicated by discovery
responses and testimony in this case, and applies to the area of inquiry, directly
related matters for which prosecution may be contemplated, and matters that
indirectly might lead to such evidence.

Sanctions are denied.

I.

BACKGROUND

The Court incorporates by
reference the Background section of the Minutes entered on April 1, 2026.

On May 18, 2026, Plaintiff
filed the Motion for Protective Order, requesting provisions as set forth in
the Proposed Order, directed at preserving Fifth Amendment objections.

Defendant/Cross-Claimant CITY
OF MONTEBELLO opposes, generally based on arguments that there is no good cause,
where the District Attorney reportedly will file no charges against Defendant. The
Opposition also contains a monetary sanctions request.

II.

LEGAL STANDARD

The decision upon whether
to enter a protective order lies within the sound discretion of the court. (Raymond Handling Concepts Corp. v. Superior
Court (1995) 39 Cal.App.4th 584, 588, 591 [court did not abuse discretion
in allowing dissemination of confidential information and trade secrets to
counsel in other cases]; People ex rel.
Harris v. Sarpas (2014) 225 Cal.App.4th 1539, 1552.)

“ ‘The Constitution does

not require a stay of civil proceedings pending the outcome of criminal proceedings. [Citation.] A court, however, has the discretion to stay civil proceedings, postpone civil discovery, or impose protective orders and conditions....' " (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 886.)

Judges must make a

particularized inquiry as to whether the party claiming the Fifth Amendment met the burden, such as by conducting an in camera hearing, and make findings on the record as to each request or document. (Warford

v. Medeiros (1984) 160 Cal.App.3d 1035, 1045.) A blanket claim of the Fifth Amendment is insufficient, but instead courts must determine whether specific requests would tend to incriminate the party. (Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 305.) Judges may compel testimony over Fifth-Amendment objections only where it clearly appears that the testimony cannot possibly tend to incriminate the witness. (In re Marriage of Sachs (2002) 95 Cal.App.4th 1144, 1151.) The Fifth-Amendment privilege may be sustained where the question asked, in the setting in asked, implies that a response might tend to incriminate the witness. (In re Marriage of Sachs (2002) 95 Cal.App.4th 1144, 1150-1151.) The

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase "substantial justification" has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.'" (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III.

ANALYSIS

Plaintiff seeks a Protective

Order providing for immunity regarding a Fifth Amendment Right Against Self-Incrimination as to discovery responses and deposition testimony. Plaintiff contends that Defendant's discovery requests relate to a Fifth Amendment objection, as to which the Statute of Limitations for criminal prosecution has not expired. Plaintiff also seeks monetary sanctions for Defendant's repeatedly renoticing depositions.

In opposition, Defendant

states, “the statute of limitations for a criminal charge against Bertha Molinari has long since passed, and therefore no Fifth Amendment privilege applies.” (Opposition, 7:4-6.) Defendant additionally requests monetary sanctions.

Transactional immunity

immunizes a defendant from prosecution for any offense implicated by compelled testimony and applies to the area of inquiry and attaches to directly related matters for which prosecution may be contemplated and matters that indirectly might lead to such evidence. (Griego v. Superior Court (2000) 80

Cal.App.4th 568, 576.) There

“‘is an evidentiary privilege that protects witnesses’ who invoke their Fifth Amendment rights ‘from being forced to give incriminating testimony, even in non-criminal cases, unless that testimony has been immunized from use and derivative use in a future criminal proceeding before it is compelled.’” (Maldonado v. Superior Court (2012) 53 Cal.4th 1112, 1128.) If the witness invoking a Fifth Amendment has been compelled to testify, has been asked to incriminate herself or himself, has provided adequate information for the prosecutor to make an informed judgment about immunity, and it would not unduly hamper the prosecutorial agency, then immunity may be granted to the witness. (Blackburn v. Superior Court (1993) 21 Cal.App.4th 414, 432-433 [no immunity accorded after Statute of Limitations expired on criminal prosecution].)

Here,

the Court reasons that a protective order according immunity against any prosecution is the superior choice. Specifically, Defendant argues the Statute of Limitations expired, but only analyzed one pursued charge, instead of all potential criminal charges, which leaves uncertainty as to whether the Statute of Limitations fully expired. (Opposition, 6:13-14 (“District Attorney’s Charge Evaluation Worksheet (Exhibit 1) lists a single potential criminal charge: Penal Code section 192(c)(2)....”).)

Further,

granting immunity against prosecution would at most be harmless, where Defendant has argued that no criminal prosecution is possible after the Statute of Limitations has expired, and discovery responses would be forthcoming. Generally, appeals courts do not reverse decisions where an error was merely harmless.

(E.g., Ayala v. Arroyo Vista Family

Health Center (2008) 160 Cal.App.4th 1350, 1361.)

Furthermore,

opposing Defendant may be estopped from ever contradicting the argument that the criminal Statute of Limitations has expired. The elements of Litigation Estoppel are (1) a party's statement or conduct, (2) intentionally and deliberately leading another to believe a particular thing true and to act upon such belief, and (3) resulting injury. (State Compensation Ins. Fund v. Workers' Comp. Appeals Bd. (1985) 40 Cal.3d 5, 16; Evid. Code § 623.)

And

the Court would not be authorized to enter a Protective Order excusing Plaintiff from having to respond to discovery, where Plaintiff has not addressed every discovery item and demonstrated how each response would tend to incriminate. Instead, Plaintiff proposed an unlimited Protective Order of immunity, covering all discovery responses, and stating "matters including, but not limited to..." at page 2, lines 1 through 6. The Fifth-Amendment "privilege may not be asserted by merely declaring that an answer will incriminate...; it must be 'evident from the implications of the question, in the setting in which it is asked, that a responsive answer to the question or an explanation of why it cannot be answered might be dangerous because injurious disclosure could result.' " (Troy v. Superior Court (1986) 186 Cal.App.3d 1006, 1010-1011.)

Nevertheless,

immunity obviates the need to laboriously go through in camera inspections to evaluate each of many discovery requests and any asked deposition questions.

Hypothetically, if the Court were to be required to consider every discovery item, it would probably appoint a Retired Judge to act as a Discovery Referee, and to make recommendations, with related expenses to be paid in equal shares by moving and opposing party. (E.g., Code Civ. Proc., § 639.

IV.

CONCLUSION

The Court grants the Motion
for Protective Order, as specified herein.

The Court denies both

sides' requests for sanctions, considering that protective orders inherently involve judicial discretion, and that the Motion is based upon substantially justified grounds, and the Opposition contains some substantially justified contentions. Finally, the parties disagree as to whether deposition renoticing

was justified after objections. (E.g., Opposition, p. 5.)